

SENATE BILL 1728

By Jackson

AN ACT to amend Tennessee Code Annotated, Title 5,
Chapter 1 and Title 6, Chapter 54, relative to
shopping carts.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 5, Chapter 1, Part 1, is amended by
adding the following as a new section:

Notwithstanding another law, local ordinance, or resolution to the contrary, a fee,
fine, or cost must not be assessed against the owner of a shopping cart found on public
property unless the shopping cart was removed from the premises or parking area of a
retail establishment by the owner of the shopping cart or by an employee acting on the
owner's behalf.

SECTION 2. Tennessee Code Annotated, Title 6, Chapter 54, Part 1, is amended by
adding the following as a new section:

Notwithstanding another law, local ordinance, or resolution to the contrary, a fee,
fine, or cost must not be assessed against the owner of a shopping cart found on public
property unless the shopping cart was removed from the premises or parking area of a
retail establishment by the owner of the shopping cart or by an employee acting on the
owner's behalf.

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it, and
applies to acts or omissions on or after July 1, 2026.